

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506653	DAI VS CORONA REGIONAL MEDICAL CENTER LLC	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The motion to strike is granted as to attorney's fees without leave to amend absent an explanation of how the plaintiff proposes to amend. The motion to strike the prayer for punitive damages is granted with 20 days' leave to amend. The motion to strike the claim for prejudgment interest is granted without leave to amend.

Analysis:

Plaintiff has not identified any contract, statute, or law providing for attorney fees other than the Elder Abuse Act. For the same reasons the demurrer to the second cause of action is sustained, the motion to strike is granted.

Because the plaintiff has neither complied with C.C.P. § 425.13(a) nor sufficiently alleged a claim under the Elder Abuse Act, the claim for punitive damages fails. "[W]here the amount of damages cannot be resolved except by verdict or judgment, prejudgment interest is not appropriate." (*Wisper Corp. v. California Commerce Bank* (1996) 49 Cal.App.4th 948, 960.) Given that the damages for this type of injury can only be determined by judgment, the motion to strike is granted without leave to amend.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2406742	BARRERA V. SKANSKA USA CIVIL WEST CALIFORNIA DISTRICT, INC.	EX PARTE APPLICATION TO ADVANCE HEARING ON MOTION TO COMPEL APPEARANCE AT DEPOSITION.

Tentative Ruling:

The ex parte application will be granted. Counsel shall appear to discuss the date to which the hearing should be advanced.

However, prior to the hearing on the ex parte application, the Court expects the parties to render this ruling, and a ruling on the underlying motion, unnecessary by agreeing to a date on which the deposition will be conducted.